AI companies are finally paying for content. Publishers still don’t set the price. Here’s who does:

They knew what it was worth.

In 2023 a Microsoft scientist warned of “the largest theft of labor in human history.” The memo surfaced in The New York Times lawsuit. Nobody in that courtroom thinks the number is zero.

Training is where the lawsuits are.
Inference is where the money is.

Courts are fighting over how models learned.
The money is in answers about right now.

$1 billion

One estimate of the market for scraped web data. Brokers like Exa, Parallel and Tavily sell it to AI labs, ad agencies and investment firms. Almost none of it reaches publishers.

Meta harvests the most. Meta also pays.

Meta drove 46.3% of the AI bot traffic DataDome tracked in the first half of the year. It also has deals with USA Today, CNN and Fox News. It pays when it chooses to.

30 Napsters, no Spotify.

That's how People Inc.'s Jonathan Roberts described the market this summer. Payment rails from Cloudflare, TollBit and ProRata exist now. A reliable exchange alone didn't get musicians paid, either.

“quite black box”

How publishers in Google’s payment pilot described its math. One called the offers “lowball.” Google pays what Google decides. For now, every buyer does.

Where that bargaining power comes from:

- Act together on licensing. SPUR is an early version of this.
- Lock the doors. 65.3% of 21,000 sites DataDome tested stopped zero bots.
- Or keep waiting on Washington, which is sitting this one out.

A market for AI answers exists and the pipes to get paid are built. Until publishers show up with bargaining power, the buyer names the price.

Full column at mediacopilot.ai. Link in bio.

Would your newsroom band together on licensing, or lock the doors?

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